



Notification Waiver Determination

Platinum Equity Group – Nestlé Waters

Acquisition	Platinum Equity, LLC (Platinum Equity) and Forward I S.à r.l. applied for a notification waiver in respect of Forward I S.à r.l.'s proposed acquisition of 50% of the issued share capital and voting rights of WPB JVco S.à r.l., a special purpose vehicle incorporated to hold the Nestlé Waters business, as described in the transaction documents provided as part of the application (the Acquisition). Nestlé S.A. (Nestlé) will retain the remaining 50% interest in the joint venture.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	31 August 2026

Parties to the Acquisition	The acquirer, Forward I S.à r.l. is owned and controlled by investment entities that are directly or indirectly managed and/or advised (including through intermediaries and funds) by Platinum Equity Advisors, LLC and ultimately controlled by Platinum Equity. Platinum Equity is a US-headquartered global private equity and investment strategies firm. The Platinum Equity Group specialises in the merger, acquisition and operation of companies providing services and solutions to customers in a broad range of sectors including, business services, information technology, telecommunications, logistics, metal services, manufacturing and distribution. Nestlé is a Swiss company headquartered in Vevey, Switzerland, and publicly listed on the SIX Swiss Exchange. Nestlé is primarily involved in the production, marketing, and sale of a large variety of food and beverage products. The target, the Nestlé Waters business, offers waters, comprising still, sparkling and flavoured water, as well as non-alcoholic beverages, including flavoured sparkling beverages. Its international brands (S.Pellegrino, Acqua Panna, the SanPellegrino Italian Sparkling Drinks, and Sanbitter range) are sold in Australia through third-party distributors. WPB JVco S.à r.l. is a special purpose vehicle established solely for the Acquisition to hold Nestlé Waters.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and

	had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is no horizontal overlap between Platinum Equity (and its connected entities) and Nestlé Waters in the supply of non-alcoholic beverages in Australia b. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act